IN THE COURT OF THE HON'BLE PRINCIPAL SUBORDINATE JUDGE OF COIMBATORE

O.S.NO. 459 OF 2018

1.Mr.S.P.Rajendran
2.Mr.N.Manivannan
3.Mr.N.Ponnusamy
4.Mr.S.Asokan
5.Mrs.Parameswari - Plaintiffs

-Vs-

Commercial Build Well Private Limited
Represented by its Authorised Signatory
V.Senthil Kumar - Defendant

WRITTEN STATEMENT FILED BY THE DEFENDANT

1. The suit, frivolous and unsustainable in law and on facts of the case.

2. The plaintiff is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments in the para 3 of the plaint that the First Plaintiff purchased four sites under Sale Deeds dated 05.10.2007, 23.10.2007 and 12.11.2009 respectively, the Second, Third and Fourth Plaintiffs purchased the property from their Vendors for valid consideration as per Sale Deeds dated 12.09.2009, 12.11.2009 and 12.11.2009 are not admitted by the defendant as correct and the Plaintiffs are put to strict poof of the same. So also the averments that the Fifth Plaintiff also got the property through Settlement Deed dated 23.11.2009 executed by her father as produced by her are all categorically and stoutly denied as false and plaintiff is put to strict proof of the same. The averments that the aforesaid properties are situated one by one from North to South in a single block in S.F.No.200/1A1 and 200/1A2 as shown in rough sketch appended with plaint which disclose location of property etc., are all stoutly and categorically denied as false.

4. The averments in the para 4 of the plaint that the plaintiff's properties were assessed by tax and the kist receipts dated 20.03.2018,21.03.2018,21.03.2018 together with chitta and A- Register for the said properties situated in S.F. No. 200/1A1 and 200/1A2 produced along with plaint document numbers 9 to 17 are all stoutly and categorically denied as false. The averments that the plaintiffs are in

possession and enjoyment of their properties and that the defendant company owns property on the eastern side of the plaintiff's property and the Survey Sketch , to show the lie of properties in the survey field 200 as alleged by plaintiff are false and vague. The averments that the property purchased by the plaintiffs is a vacant land having no cultivation and the Plaintiffs are living away from the property, in Coimbatore and by using the situation, the defendant on so many occasions claimed a portion of the plaintiff's property by saying that it belongs to defendant , which was not accepted by the plaintiffs and because of the same, there was a continuous disputes between the plaintiffs and the defendant regarding the boundary of their properties and during the last week of November 2009, the defendant company has encroached an extent of 50 cents by north south, on the eastern side of the plaintiffs' property are categorically and stoutly denied by this defendant as false. So, also the averments that the defendants with their henchmen, using the situation of the plaintiffs living away from the suit property, encroached 17 meters east west and 110.2 meters north south on the eastern side in the plaintiffs' property and the encroached portion is shown as ABCD in the rough plan submitted with plaint which is the suit property and that on 15.10.2009, a Memorandum of Understanding was entered into between the defendant, and the first plaintiff for himself and representing other plaintiffs also and through which they decided to hold a joint survey based on their title deeds and agreed to settle their disputes etc., are all stoutly and categorically denied as false.

5. The averments in the para 5 of the Plaint that the plaintiffs recently came to understand that the defendants are in the process of selling their property to third parties including the 50 cents land encroached by defendant company in the plaintiffs' property and the plaintiffs came to know the same through an advertisement published by the defendant in The Hindu dated 7.2.2018 and also in the Dhina Thanthi paper and the plaintiffs through their counsel lodged an objection for the advertisement, by way of sending a legal notice to the counsel of defendant etc., are all stoutly and categorically denied by this defendant as incorrect and the plaintiffs are put to strict proof of the same.

6. The averments in the para 6 of the Plaint that the plaintiffs have no objection for sale of the property of the defendant company but the defendant company should not sell the encroached portion of the plaintiffs property and in the event of

which, the plaintiffs will be put to heavy loss and irreparable injury and the plaintiffs on so many occasions approached the defendant company and questioned the defendant company regarding this and asked them to remove the encroachment, for which the defendant did not heed and refused to remove the barbed wire fencing etc., are all categorically and specifically denied as false. The averments that on 26.03.2018 the plaintiffs met the defendant officers by asking them to remove the wire fencing and also they were continuously asking for surveying the property, for which, the defendant did not agree and openly proclaimed that they will sell the property and as such the plaintiffs have become constrained to file the present suit for an order of permanent injunction against the defendant not to sell the encroached portion of the plaintiff's property and the averments that the defendant is the highly influential and is having men and money at their command and as such unless the defendant is restrained from selling the portion of the plaintiffs' property, along with their property to third parties, the plaintiffs will be put to heavy loss and irreparable injury are all stoutly and categorically denied as false. The Plaintiffs filed an application seeking permission under Order 2 Rule 2, read with Section 151 of C.P.C for recovery of suit in in further date etc., are all unsustainable in the eye of law and on the facts of the case. Further the averments that the 4th plaintiff herein is the power agent of the 5th plaintiff vide the General Power of attorney executed by the 5th plaintiff in favour of the 4th plaintiff dated 24.11.2009 and based on which they are filing suit etc., are all stoutly and categorically denied as false. The alleged causes of action are false.

7. At the outset, this defendant submits that the suit is not maintainable in law and on facts of the case and thereby the plaint is liable to be rejected and as such this defendant filed I.A.No.1089/2018 under Order 7 Rule 11 for rejection of plaint and without prejudice to the same this Written Statement is being filed.

8. At the outset this defendant submits that there is no cause of action for filing the suit towards the relief as prayed for in the plaint and the reliefs sought for in the plaint is vague and bald. If really the plaintiffs have grievances regarding alleged encroachment of their property by defendant company, the plaintiff ought to have filed the suit for removal of encroachment if any and for recovery of possession (without prejudice) and without which, filing a bare injunction suit seeking relief of permanent injunction not to alienate the alleged encroached portion is totally

unsustainable in law and on facts of the case. The plaintiffs have not explained in their plaint as to how they arrived the alleged encroached portion without any kind of survey and thus the description of property given in the plaint is wrong and vague. Even the plaintiffs have not produced any plan obtained from survey department along with plaint but simply produced a rough sketch drawn by them denoting a portion as ABCD as if encroached portion which is unknown to law and thereby the suit based on that is not maintainable.

9. This defendant submits that the plaintiffs have not at all mentioned their properties in plaint description of property respectively and also they have not described the property owned by defendant and without giving description of properties owned by parties respectively as in their Sale Deeds, the plaintiffs have furnished some kind of description which no one knows as to how they derived title to the said extent. It is well settled Law that oral pleadings are excluded as against registered instruments and whileso, the description given by the plaintiffs in the plaint as against registered Sale Deeds are unacceptable and thus the suit filed based on the same is liable to be rejected/dismissed for want of cause of action.

10. This defendant submits that the filing of petition under Order 2 Rule 2 seeking permission to file a suit for ancillary relief of permanent injunction by dispensing with main relief does not absolve the dismissal of suit on the ground of Order 2 Rule 2. This defendant submits that on date of filing suit the petitioner alleged that the defendant company is making attempt to sell 50 cents of land alleged to have been encroached from plaintiffs properties and fenced it and also alleged that the defendant company said to have encroached the suit property in last week of November 2009 and whileso, now almost 14 years lapsed and even now they are maintaining the suit only for permanent injunction without seeking whole relief if any of deliver of possession and thus the suit is hit under Order 2 Rule 2, besides under The Limitation Act (without prejudice).

11. This defendant submits that as per plaint pleadings the definite case of plaintiffs were that the defendant encroached an extent of 50 cents (without mentioning the survey number if any) and the present suit is filed after lapse of 9 years without seeking full relief for removal of encroachment if any and for possession that itself shows that the plaintiffs have no case and they have purposely

filed the present suit by abusing process of Law with sole intention to harass the defendant. It is well settled Law that if larger extent of property said to have been encroached, the remedy for aggrieved is to file a suit for removal of encroachment and for possession by paying ad-valorem court fee and without availing such relief, the bare injunction suit filed with a minimum court fee under section 27(c) is totally untenable in eye of law and on facts of the case. Thus, the suit is liable to be dismissed for its under valuation and also for want of cause of action.

12. This defendant submits that the plaint is filed by suppression of facts for the reasons that the plaintiffs have not disclosed their properties with proper extent in particular survey number and without mentioning any of such details, the present suit is filed with vague allegations. There is no mention in entire plaint about the extent of property purchased by each of the plaintiffs with its survey number and boundaries, not even the details of extent with survey number set out in the plaint and whileso the plaint is liable to be rejected for want of cause of action. The plaintiffs have also alleged that the suit property being encroached portion is in possession of this defendant (without prejudice) and also the same is fenced and whileso, without seeking proper relief of possession along with relief of declaration, (if any) the present suit for bare injunction is untenable and thereby liable to be dismissed in limini.

13. This defendant further submits that this defendant owns an extent of 8.56 acres in S.F.No.200/1A2 (as per present sub division) as per Sale Deed dated 27.02.2007, registered as Doc.No.3200/2007 at SRO, Sulur executed by vendors Ramalingam and Palanisamy represented by their power agent for valid consideration. Similarly, the defendant company owns another extent of 1.06 acres in S.F.No.199/2B under Sale Deed dated 27.02.2007, registered as Doc.No.3201/2007 at SRO, Sulur for valid consideration and ever since then the defendant company is in possession and enjoyment of those properties without hindrance from anyone else as its absolute owner. However, the plaintiffs without giving any survey number pertaining to plaint schedule as described by them, simply filed the suit seeking relief of permanent injunction not to alienate the defendant's property along with alleged encroached portion which relief is unknown to law. This defendant submits that the defendant company does not own any property in

S.F.No200/1A1. Similarly, the plaintiffs are not owning any extent of property in S.F.No.200/1A2. In short, the defendant company is owning property in S.F.No.200/1A2 and the plaintiff are owning properties in S.F.No.200/1A1. It is admitted case that the properties are subdivided long back and whileso, without giving any survey number to plaint schedule, the present suit is filed with vague and bald allegations. Hence, there is no cause of action for filing the present suit and the plaintiffs have not approached this Honourable Court with clean hands. The prayer set out in the plaint is unknown to law. There are no merits in the suit. This defendant reiterates that they did not at all encroach any portion of property belongs to plaintiffs. This suit is also bad for non-joinder parties since necessary parties are not added to suit. The plaintiffs have not filed the suit for main relief (if any) and as such, they cannot maintain suit for ancillary relief. Even if at all the plaintiffs have any main relief that is also barred under law of limitation at present.

Therefore, it is prayed that this Honourable Court may be pleased to pass an order by rejecting the plaint and pass such other further relief.

ADVOCATE FOR DEFENDANT **DEFENDANT**

VERIFICATION

I, the defendant above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same at Coimbatore on

DEFENDANT

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- Plaintiffs

-vs-

Commercial Build Well Private Limited
Represented by its Authorised Signatory
V.Senthil Kumar

- Defendant

WRITTEN STATEMENT FILED BY THE DEFENDANT

Pre. On:

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